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#	Case Name Case Number	Tentative
1.	<i>In re Intelifund, LLC</i> 2026-01572926	OFF CALENDAR based on request for dismissal filed on August 20, 2026.
2.	<i>In re: Martinez</i> 2025-01511372	Before the court is the continued hearing on the order to show cause as to why the court should not reconsider its February 26, 2026 ruling granting the first amended verified petition for approval for transfer of structured settlement payment rights by and between payee and real party in interest Luis Martinez (Payee) and petitioner CBC Settlement Fundings, LLC (Petitioner). The court originally heard the order to show cause on August 6, 2026. The court posted a tentative noting the response Petitioner submitted to the order to show cause raised additional concerns and failed to address all the concerns the court previously raised. At the August 6, 2026 hearing, the court granted the request of Petitioner's counsel to continue the order to show cause hearing for Petitioner to once and for all address all concerns and deficiencies. Unfortunately, it appears Petitioner still has not addressed everything. Notice of today's hearing was not provided to anyone—not Payee, not the annuity owner, and not the annuity issuer. Insurance Code section 10139.5, subdivision (f)(2),

		requires all interested parties to receive at least 20 days' notice of the hearing on the petition. Obviously, that did not occur prior to the hearing at which the amended petition was originally approved because Petitioner served the wrong annuity owner and annuity issuer. The court was willing to allow Petitioner to correct that error by allowing Petitioner to provide the proper annuity owner and issuer at least 20 days' notice of the order to show cause hearing. Petitioner, however, gave less than the required notice, which is one of the reasons the order to show cause hearing was continued. Now, Petitioner has not provided any notice of this continued hearing. Another issue the court raised was Petitioner's failure to serve Payee with any of the documents following the order to show cause the court issued on June 24, 2026. Petitioner did not give Payee notice of the August 6, 2026 hearing and Petitioner did not serve a copy of its July 23, 2026 filing on Payee. Petitioner did serve a copy of its most recent filing—filed on September 11, 2026—on Payee, but it still has not served Payee with a copy of the court's order to show cause or the first supplemental filing. As such, Payee has no context for the most recent filing and has not been fully advised of the issues. As for Petitioner's September 11, 2026 filing, it purports to be a declaration by Michael B. Dalbey. That declaration, however, fails to comply with Code of Civil Procedure section 2015.5. Mr. Dalbey signed the declaration in Conshohocken, Pennsylvania but the declaration does not say that it was signed "under the laws of the State of California." Section 2015.5 requires a certification or declaration to be in the following form: "(a) If executed within this state: 'I certify (or declare) under penalty of perjury that the foregoing is true and correct'; [¶] (b) If executed at any place, within or without this state: 'I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.'" A declaration executed outside of California that fails to include the words "under the laws of the State of California" is inadmissible hearsay and has not evidentiary value. (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 612 fn. 6; <i>ViaView, Inc. v. Retzlaff</i> (2016) 1 Cal.App.5th 198, 217.) Moreover, Mr. Dalbey's declaration raises issues regarding payments made to Payee. According to Mr. Dalby, Petitioner will pay the \$5,000 to Payee over seven separate installments, six of which have been paid. This payment schedule is not referenced in the "Purchase and Sale
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		Agreement.” (Exh. A to ROA 13.) In fact, the declaration signed by Payee on December 6, 2025, stated he needed the \$5,000 to “bring my rent current” and “avoid losing my home.” (Martinez Decl, ¶11, Exh. F to ROA 13.) He did not say he needed to receive a stream of seven payments. Moreover, the court is unable to find any reference to such a payment schedule rather than a lump sum payment. Although not clearly stated, the implication was a single lump sum payment. At this point in time, the court is inclined to vacate the prior ruling and deny the amended petition without prejudice to Petitioner filing a new, amended petition that fully complies with the governing statutory requirements, accurately describes the transaction, and provides valuations based on current information.
3.	<i>Singer vs. D’Amico</i> 05CC09237	Before the court is the order to show cause why an order for sale of dwelling should not issue relating to property located at 32961 Calle Miguel, San Juan Capistrano, California 92675 and owned by judgment debtor Nina D’Amico (Debtor) and her spouse, Terry K. D’Amico, as husband and wife and joint tenants. The order to show cause was entered on July 27, 2026, based on the application of judgment creditor Katherine Singer (Creditor). The court previously found Creditor’s application satisfied the statutory requirements, and therefore the court issued the order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770.) In connection with the order to show cause the court must determine whether the dwelling is a homestead entitled to the homestead exemption, the amount of any homestead exemption, the dwelling’s fair market value, the existence of any liens senior to Creditor’s judgment lien, the amount of any such liens, and whether the sale of the dwelling is likely to produce a bid high enough to satisfy any part of Creditor’s judgment. (<i>Meyer v. Sheh</i> (2022) 74 Cal.App.5th 830, 838-839.) There is no statutory requirement the bid be sufficient to cover any costs of the sale. (See <i>In re Hyman</i> (9th Cir. 1992) 967 F.2d 1316, 1321.) The court finds the issuance of the order to be warranted. Creditor concedes Debtor is entitled to a homestead exemption on the property, and the amount of that exemption is \$150,000 based on the exemption statute in effect at the time Creditor’s original lien was created in 2006. (ROA 79, Ex. F; Code of Civ. Proc. § 703.050, subd. (a); § 704.730, subd. (a)(3) [effective January 1,

		2004, to December 31, 2009]; <i>Berhanu v. Metzger</i> (1992) 12 Cal.App.4th 445, 447.) The court finds the fair market value of the property to be \$1,274,000 based on the appraisal by Emanuel Rubin. (ROA 77, Ex. G.) There exists a first lien on the property held by NewRez LLC dba Shellpoint Mortgage Servicing, with a current payoff amount of \$239,595.74. (ROA 96, Ex. O.) The court finds, by a preponderance of the evidence, there is sufficient equity in the home to cover all liens and encumbrances which are senior to Creditor's abstract of judgment plus the conceded value of the homestead exemption. (Code Civ. Proc., § 704.780. subd. (b).) Creditor is ordered to submit a proposed order for sale of dwelling consistent with this ruling that includes all statutorily required information, including but not limited to, the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and the name and address of each such person. (Code of Civ. Proc., § 704.780, subd. (b).) Creditor's counsel is ordered to give notice of this ruling.
4.	VFS, LLC vs. AM Bakersfield, LLC 2025-01487067	Before the court is the continued hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 3111 Gardenia Lane, Yorba Linda, California 92886 and owned by judgment debtor Arpit Patel (Debtor) and his spouse, Yesha Patel, as husband and wife and joint tenants. The order to show cause was entered on June 4, 2026, based on the application of judgment creditors VFS, LLC and VFSOX, LLC (collectively, Creditors). The court previously found Creditor's application satisfied the statutory requirements, and therefore the court issued the order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770.) At the prior hearing on August 6, 2026, the court noted it was now up to the court to determine whether Debtor is entitled to a homestead exemption for the property, if so, the amount of that exemption, the property's fair market value, the amount of the outstanding liens, and whether Debtor has sufficient equity in the property. The court further noted the parties did not dispute Debtor and his spouse lived in the home and were entitled to the homestead exemption in the amount of \$722,150. The court further determined that the outstanding balance of the first lien on the property held by Change Lending, LLC is \$3,064,745.43.